

25STCV35907 25STCV35907

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-24

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Case Number: 25STCV35907 Hearing Date: September 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV35907

EMMA

SWEARENGIN, et al. vs PIPER MAVIS

September

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION TO COMPEL FURTHER RESPONSES TO INSPECTION DEMAND, SET NO. ONE [DEMAND NUMBERS 12, 14, AND 16] TO PIPER MAVIS.

RULING:

The Court grants the Motion.

Defendant PIPER MAVIS is ordered to provide responses without objection and produce responsive documents to Plaintiffs' Inspection Demand, Set No. One, Demand Numbers 12, 14 and 16, within 20 days of the service of this Order.

Additionally, the Court issues a protective order requiring Plaintiffs' counsel to restrict disclosure of the ordered discovery to counsel and to limit use of it for purposes of this lawsuit only.

The Court awards monetary discovery sanctions in the amount of \$5,260.00 jointly and severally against Defendant PIPER MAVIS and counsel ENESTEIN PHAM GLASS GUTENPLAN & BULLING LLP.

Plaintiffs to give notice.

I.
BACKGROUND

On September 3, 2026, EMMA SWEARENGIN and GIOVANNI BOSKOVICH (Plaintiffs) filed the Second Amended Complaint (SAC) against PIPER MAVIS (Defendant), for: TRESPASS, PRIVATE NUISANCE, NEGLIGENCE, BREACH OF HABITABILITY; STATUTORY BREACH OF HABITABILITY; BREACH OF QUIET ENJOYMENT; CONSTRUCTIVE EVICTION; FEHA DISCRIMINATION- CIVIL CODE SECTION 51 ET SEQ.; CIVIL CODE SECTION 1946.2; and CIVIL CODE SECTION 1950.5.

Plaintiffs allege that Defendant, as landlord, rented a single-family residence at 741 Montecito Drive, Los Angeles, where Plaintiffs, as tenants, experienced mold related injuries, due to needed plumbing repairs, and Defendant discriminated against Plaintiffs' asthma conditions, based on evicting with the false excuse of inability to pay for remediation and a need to sell the house.

On August 27, 2026, Plaintiffs filed the Amended Motion to Compel Defendant's Further Document Responses, to

Request Numbers 12, 14 and 16, seeking financial records regarding Defendant's asserted lack of finances to remediate. Plaintiffs also seek monetary sanctions.

Defendant Opposes mainly based upon privacy related objections, and requests \$5,245.00 in sanctions against Plaintiffs.

The Reply, at page 2, emphasizes that there is more than just a text indicating inability to pay for remediation with intent to sell the house.

II.

LEGAL STANDARD

Where respondents object or respond inadequately to discovery requests, a motion lies to compel further responses, as to which respondent has the burden to justify the objections. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255; Code Civ. Proc., § 2031.310, subd. (a) [motion to compel further responses lies "[o]n receipt of a response to an inspection demand...."].) A propounding party's remedy when it deems objections in discovery responses to be without merit is to move for an order compelling further responses. (Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127.)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions, unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) "[T]he phrase 'substantial justification' has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact." (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.) "If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

III.

ANALYSIS

Plaintiffs request an Order compelling Defendant to provide full and complete responses and

production of documents to demand numbers 12, 14 and 16, without the financial privacy and other objections, and imposing sanctions against Defendant and ENENSTEIN PHAM GLASS GUTENPLAN & BOLLING LLP, in the amount of \$5,260.00.

Defendant contends that the discovery of private finances is not relevant to the claims, and is not justified by a text message from May 2025 equivocally stating Defendant was “ ‘not financially prepared’ ” to undertake mold remediation at the rental property.

Courts must carefully balance a right of privacy against the interest in having just litigation. (*Pioneer Electronics (USA), Inc. v. Superior Court* (2007) 40 Cal.4th 360, 371; *Valley Bank of Nevada v. Superior Court* (1975) 15 Cal.3d 652, 657.)

Once good cause for production has been shown, the objecting party has the burden to file evidence to justify objections including those based upon privacy. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 97-98.)

“[I]ndividuals have a legally recognized privacy interest in their personal financial information.” (*International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Superior Court* (2007) 42 Cal.4th 319, 330.)

Whenever possible, judges should consider the possibility of a protective order limiting the intrusion or disclosure, for assuaging privacy concerns. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1432.) Judges may issue protective orders restricting disclosure of information to counsel for parties requesting discovery, and limiting the use to lawsuit purposes. (*Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 318-319, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

Restricting discovery as to defendants' financial condition (Civ. Code § 3295(c)) is inapposite where finances are relevant as to a substantive claim. (*Rawnsley v. Superior Court* (1986) 183 Cal.App.3d 86, 91).

Whether lessors have a right to evict tenants is a recognized issue as to claims for Wrongful

Eviction. (See *Cunningham v. Universal Underwriters* (2002) 98 Cal.App.4th 1141, 1150 [a “wrongful eviction ... occurs when the person recovering the property had no right to dispossess the other party from the property.”].) There is law to prevent landlords from evicting based on false pretenses. (E.g., *Apartment Assn. of Los Angeles Cnty., Inc. v. City of Los Angeles* (2009) 173 Cal.App.4th 13, 23.) Further, good faith or pretext for evictions is generally determined from all relevant surrounding circumstances. (*DeLisi v. Lam* (2019) 39 Cal. App. 5th 663, 675. See also generally *Wrongful eviction*, Cal. Civ. Prac. Real Property Litigation § 30:18 [available on Westlaw].) Landlords have the obligation to provide habitable premises to tenants. (*Fairchild v. Park* (2001) 90 Cal. App. 4th 919, 928.) There have been laws to prevent landlords from going out of business unless residences are incapable of being made habitable in an economically feasible manner. (E.g., *City of Santa Monica v. Yarmark* (1988) 203 Cal.App.3d 153, 164.)

Here, the Court finds that Plaintiffs showed good cause for learning financial information from one-month periods of Defendant’s finances, towards evidencing whether Defendant’s alleged reason for eviction was pretextual to circumvent law. And Defendant has not demonstrated that financial privacy outweighs the interest in having just litigation, or any substantial justification.

IV.

CONCLUSION

Accordingly, the Court grants the Motion, for reasons stated.

Additionally, to mitigate privacy intrusion, the Court adds a protective order set forth above.